

# Professorship of Corporate Law

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## **Business Law**

### Warranty Rights I

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# Case 1a) – Facts

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Olivia (O) is the owner and operator of an electronics store. Customer Christoph (C) is looking for new headphones that he can use at the gym. So employee Elaine (E) sells C a high-priced model for 300€ (objective value of 200€). E hands C the headphones in the original packaging with a charger and the relevant instructions.

At home, C misplaces the headphones before unpacking them and only finds them ten months later. When C is finally able to use the headphones, he notices that the active noise cancelling does not work. After talking to his friends, who both own similar headphone models in the same price category, C is sure that his headphones are not up to standard.

The next morning, C turns to O and asks her for new headphones with functioning active noise cancelling. O admits that active noise cancelling is standard today and should be working. However, O blames the problem on C's use and claims that C complains to her much too late.

**Question 1a):** Can C demand cure (in form of re-delivery of the headphones)?

## Case 1b) – Facts

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This time, the usual active noise cancelling works. Nevertheless, C is disappointed. The manufacturer's extensive advertising, which C saw in O's store, claims that the headphones have twice as good active noise cancelling as comparable models. What O, E and C didn't know is, that in some headphones (like in the ones of C) this function does not work due to improper production. The manufacturing company planned to inform the sellers about this malfunctioning in the coming weeks.

**Question b):** Can C demand cure (in form of re-delivery of the headphones)?

## Case 1c) – Facts

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When C asks for the delivery of a new pair of headphones, O refuses. She explains that a new delivery would involve additional effort and costs of 60€ since she must return the old one so that the manufacturer can examine it and then send a new one. These circumstances are unbearable for her regarding a purchase price of only 300€.

On the other hand, repairing the improperly manufactured headphones is easily and flawlessly possible on site by O in her workshop licensed by the manufacturer and would only cost 20€. The repair would take one day.

However, C insists on his choice. He does not want a repair only because he bought a new product and he does not consider a repaired product to be new.

**Question c):** Can C demand cure (in form of re-delivery of the headphones)?